

24STCV33191 24STCV33191

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-06-25

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Case Number: 24STCV33191 Hearing Date: June 25, 2026 Dept: 512

HEARING DATE: Thurs., June 25, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Choice

Foods, Inc. v. Shoreline Foods, Inc.

et

al. COMP.

FILED: 12-17-24

CASE NUMBER: 24STCV33191 FAC

FILED: 08-22-25

NOTICE:

OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Glen H. Mertens for Defendant Freeway Foods, Inc.

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Glen H. Merten's Motion to be Relieved as Counsel for Defendant Freeway Foods, Inc. is GRANTED.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

"Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" is electronically signed by the Court and filed herein this date for reference.

On its own motion, the Court sets an Order to Show Cause Re Status of Defendant Freeway Foods, Inc.'s Representation for July 17, 2026, at 9:00 a.m. in Dept. 512 of the Stanley Mosk Courthouse, for Defendant corporation to advise the Court as to the status of its representation by counsel who is a member of the California State Bar.

As an entity, Defendant may not represent itself in this litigation and may only appear through counsel who is a member of the California State Bar. The failure of Defendant to obtain counsel before the next hearing date on July 17, 2026, will result in the striking of Defendant Freeway Foods, Inc.'s Answer to the Complaint. The Court schedules an Order to Show Cause Re: Status of Defendant Freeway Food, Inc.'s Representation for July 17, 2026 at 9:00 a.m. in Department 512 at Stanley Mosk Courthouse.

Freeway Foods, Inc.'s Counsel is ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct
Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of June 22, 2026 [] Late [X]

None

REPLY: None

filed as of June 22, 2026 []

Late [X] None

ANALYSIS:

I.

Background

On August 22, 2025, Plaintiff Choice

Foods, Inc. filed a First Amended Complaint ("FAC") against Defendants

Shoreline Foods Inc., Amusement Foods Inc., Freeway Foods, Inc., Duquesne

Properties, LLC, 730 Broadway, Inc., Waffle Plaza Properties, Inc., Diego Plate

Properties, LLC, Gower Properties, LLC, La Breafo, Inc., La Brea Food, Inc.,

Roscoe's Cool, Inc., Heirbel Management, Inc., Heirbella Drink Co, LLC,

Roscoe's Intellectual Property, LLC,

Herbert Hudson, and Sam White ("Defendants") and Does 1-30, alleging Breach of

Contract, Open Book Account, Account Stated, Intentional Misrepresentation,

Negligent Misrepresentation, Promissory Estoppel, Quantum Meruit, and Unjust

Enrichment causes of action.

On September 22, 2025, Shoreline

Foods, Amusement Foods, Freeway Foods, LA Breafo, Duquesne Properties, Waffle

Plaza Properties, Diego Plate Properties, LA Brea Foods, Heirbel Management,

Heirbella Drink, and Roscoe's Intellectual Properties LLC filed an Answer to

the FAC. Also, Shoreline Foods, Amusement Foods, Freeway Foods, and LA Breafo

Foods previously filed a Cross-Complaint on February 5, 2025.

On May 27, 2026,

Counsel for Freeway Foods, Glen H. Mertens ("Counsel") filed and served the

instant Motion to be Relieved as Counsel for Defendant Freeway Foods (the

"Motion").

No Opposition

has been filed.

II.

Legal

Standard

Code

of Civil Procedure section 284 states that “the attorney in an action...may be changed at any time before or after judgment or final determination, as follows: (1) Upon the consent of both client and attorney...; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

An application

to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, “current” means:

“[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of

Court, rule 3.1362, subd. (d).)

III.

Discussion

On May 27, 2026,

Counsel moved the Court to be relieved

as attorney of record for Freeway Foods. (MC-051.) Counsel filed MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

Counsel seeks to be relieved on the following grounds:

Client Freeway Foods, Inc. is, according to Secretary of State, 'FTB Suspended,' and client has not produced revivor certificate. Complete breakdown of communication between moving counsel and client. Last telephonic and text exchanges with client's sole owner and owner's third party financial advisor concerning issues in this case were on November 21, 2025, at which point moving counsel was informed that new counsel would be substituting into this case but no substitution of attorney form has been circulated, served, or filed. Client has not paid outstanding invoices. Client's owner and financial advisor have not responded to inquiries regarding discovery issues since November, 2025. Client apparently has engaged other counsel to 'speak' for it in dealing with plaintiff's counsel (without substituting into the case in place of moving counsel).

(MC-052, ¶ 2.)

The Court is satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Motion satisfactorily complies with California Rules of Court, rule 3.1362.

Accordingly, Counsel's Motion is GRANTED.

IV.

Conclusion & Order

Based on the foregoing, Counsel Glen
H. Merten's Motion to be
Relieved as Counsel for Defendant Freeway Foods, Inc. is GRANTED.

The Court's Ruling and Attorney's
relief as Counsel of record for client is not effective until Proof of Service
of the Order signed by the Court upon the client is served and filed in this
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